

THE STATE OF TEXAS
VS.

MARIA CALVILLO
13222 BARRANCA
HOUSTON, TX 77083

02668295

SPN:
DOB: WF 11/5/74
DATE PREPARED: 3/11/2013

D.A. LOG NUMBER: 1940152

CJIS TRACKING NO.:

BY: SC DA NO: 050785416
AGENCY: ALIEF ISD PD
O/R NO: 12001175
ARREST DATE: TO BE

FILED

Chris Daniel
District Clerk

NCIC CODE: 1199 01

RELATED CASES: SAME DEF. FELONY

FELONY CHARGE: **IMPROPER RELATIONSHIP WITH STUDENT**

CAUSE NO:

HARRIS COUNTY DISTRICT COURT NO:

FIRST SETTING DATE:

1380315

183

BAIL: \$10,000 Time:

PRIOR CAUSE NO:

By

MAR 11 2013

Harris County, Texas

Deputy

IN THE NAME AND BY AUTHORITY OF THE STATE OF TEXAS:

Before me, the undersigned Assistant District Attorney of Harris County, Texas, this day appeared the undersigned affiant, who under oath says that he has good reason to believe and does believe that in Harris County, Texas, **MARIA CALVILLO** hereafter styled the Defendant, heretofore on or about **SEPTEMBER 24, 2012**, did then and there unlawfully while an employee of a PUBLIC SECONDARY school, intentionally and knowingly engage in SEXUAL INTERCOURSE with DONALD SAXTON-LOVE, hereinafter called the Complainant, a student who was enrolled at the school at which the Defendant worked and who was not the Defendant's spouse, by CAUSING THE COMPLAINANT'S MALE SEXUAL ORGAN TO PENETRATE THE DEFENDANT'S FEMALE SEXUAL ORGAN.

PROBABLE CAUSE

AFFIANT, OFFICER M. WILSON IS A POLICE OFFICER WITH THE ALIEF I.S.D. POLICE DEPARTMENT. AFFIANT BELIEVES AND HAS REASON TO BELIEVE THAT THE SUSPECT, CALVILLO, MARIA A.K.A. CALVILLO, AMALIA, ORTEGA, MO AND ORTEGA, MOLLY COMMITTED THE OFFENSE OF IMPROPER RELATIONSHIP BETWEEN EDUCATOR AND STUDENT TEXAS P.C. 21.12 ON OR ABOUT SEPTEMBER 24, 2012 AND ON OR ABOUT OCTOBER 4, 2012 AT 7555 HOWELL SUGARLAND, HOUSTON HARRIS COUNTY, TEXAS.

ON OR ABOUT OCTOBER 31, 2012, AFFIANT RECEIVED INFORMATION FROM JANIE SAXTON, A CREDIBLE AND RELIABLE PERSON, DETAILING HAVING DISCOVERED ON LINE CONVERSATIONS ON FACEBOOK INC. BETWEEN HER 17 YEAR OLD SON, DONALD SAXTON-LOVE, HEREINAFTER NAMED AS COMPLAINANT, WHO IS A TWELFTH GRADE STUDENT AT TAYLOR HIGH SCHOOL LOCATED AT 7555 HOWELL SUGARLAND ROAD HOUSTON, HARRIS COUNTY, TEXAS 77083, AND A PERSON IDENTIFIED ON THE CONVERSATION AS MO ORTEGA. SAXTON ASKED COMPLAINANT WHO MO ORTEGA WAS AND COMPLAINANT IDENTIFIED MO ORTEGA TO BE MARIA CALVILLO WHO SAXTON KNEW TO BE A NURSE'S AIDE AT THE COMPLAINANT'S SCHOOL. THESE CONVERSATIONS WERE REPORTED TO BE OF A SEXUALLY EXPLICIT NATURE.

MS. SAXTON PRESENTED A "THUMB DRIVE" OF CAPTURED DIALOG BETWEEN THE COMPLAINANT AND LISTED SUSPECT CALVILLO WHICH WERE DISCOVERED ON MS. SAXTONS PERSONAL COMPUTER. AFFIANT REVIEWED THESE CAPTURED CONVERSATIONS AND OBSERVED MULTIPLE DISCUSSIONS OF A SEXUALLY EXPLICIT NATURE DETAILING A PAST INCIDENT OF SEXUAL INTERCOURSE AS WELL AS A CONVERSATION ON OCTOBER 4, 2012 WHEREIN DEFENDANT SOLICITED COMPLAINANT TO ENGAGE IN SEXUAL INTERCOURSE THE FOLLOWING DAY AS EVIDENCED BY THE FOLLOWING COMMUNICATION:

MO ORTEGA: IDK....UR GONNA HAAVE TO BEND ME OVER AND FUCK ME TOMORROW. THIS IS TOO MUCH TORTURE!!!
YU GOT SOOOO MANY FINE CHICKS ON UR FEED?
DONALD ANTONIO SAXTON-LOVE: IDK NOT MY FAULT AND U SURE U WANT ME TO
MO ORTEGA: LOL. HELL YEA

RECORDER'S MEMORANDUM
This instrument is of poor quality
at the time of imaging

YOUR AFFIANT, BELIEVING THESE CONVERSATIONS REPRESENTED DISCUSSIONS OF SEXUAL CONTACT HAVING OCCURRED BETWEEN SUSPECT AND COMPLAINANT, INTERVIEWED LISTED SUSPECT CALVILLO ON OCTOBER 31, 2012 AND AGAIN ON FEBRUARY 14, 2013. SUSPECT WAS ADVISED OF STATUTORY WARNINGS PER TEXAS CRIMINAL CODE 38.22 AND UPON ADVISING UNDERSTANDING OF THESE WARNINGS AGREED TO DISCUSS THIS INCIDENT WITH AFFIANT.

CALVILLO TOLD AFFIANT THAT SHE IS KNOWN BY THE FOLLOWING NAMES, MARIA CALVILLO, AMALIA CALVILLO, MO ORTEGA, AND MOLLY ORTEGA. CALVILLO TOLD AFFIANT THAT COMMUNICATIONS VIA FACEBOOK HAD OCCURRED BETWEEN SUSPECT AND COMPLAINANT UNDER THE ACKNOWLEDGED NAME OF MO ORTEGA AND HAD INDEED TURNED FROM SIMPLE CONVERSATION TO "SOMEWHAT SEXUAL KIND OF DISCUSSIONS." SUSPECT DENIED HAVING BEEN INVOLVED IN ANY FORM OF SEXUAL CONTACT OR SEXUAL INTERCOURSE WITH LISTED COMPLAINANT WHEN ASKED BY AFFIANT.

AFFIANT INTERVIEWED COMPLAINANT ON NOVEMBER 1, 2012, AND, DURING THIS INTERVIEW, COMPLAINANT PROVIDED DETAILS OF BOTH ON LINE COMMUNICATIONS OF A SEXUAL NATURE AS WELL AS SEXUAL CONTACT, IN THE FORM OF SEXUAL INTERCOURSE, HAVING OCCURRED BETWEEN SUSPECT AND COMPLAINANT ON SEPTEMBER 24, 2012 AND SEPTEMBER 26, 2012. THESE INCIDENTS OF SEXUAL INTERCOURSE WERE REPORTED TO HAVE OCCURRED AT THE TAYLOR HIGH SCHOOL CLINIC LOCATED AT 7555 HOWELL SUGARLAND ROAD HOUSTON, HARRIS COUNTY, TEXAS 77083.

COMPLAINANT DESCRIBED TO AFFIANT THAT ON THE MORNING OF SEPTEMBER 24, 2012 AT AROUND 0645 HOURS COMPLAINANT AND SUSPECT ENTERED THE CLINIC STORAGE ROOM AND ENGAGED IN SEXUAL INTERCOURSE WHEREUPON THE COMPLAINANT'S MALE SEXUAL ORGAN PENETRATED THE SUSPECT'S FEMALE SEXUAL ORGAN WHILE BOTH PARTIES WERE ON THE FLOOR OF THE STORAGE ROOM WITH VARIOUS ITEMS OF CLOTHING REMOVED. YOUR AFFIANT THEN RECEIVED A DESCRIPTION OF SEXUAL INTERCOURSE AGAIN OCCURRING ON SEPTEMBER 26, 2012 WHILE IN THE SCHOOL CLINIC STORAGE ROOM WHEREUPON THE VICTIM'S MALE SEXUAL ORGAN PENETRATED THE SUSPECT'S FEMALE SEXUAL ORGAN.

COMPLAINANT WAS INTERVIEWED, ON OR ABOUT NOVEMBER 6, 2012, AT THE HARRIS COUNTY CHILDREN'S ASSESSMENT CENTER. COMPLAINANT PROVIDED AN ACCOUNT OF HAVING ON LINE COMMUNICATION OF A SEXUAL NATURE WITH THE SUSPECT AS WELL AS HAVING ENGAGED IN SEXUAL INTERCOURSE IN THE CLINIC STORAGE ROOM AS PREVIOUSLY DESCRIBED TO YOUR AFFIANT ON TWO SEPARATE OCCASIONS. AFFIANT KNOWS, BASED ON HIS PERSONAL KNOWLEDGE AS AN OFFICER OF ALIEF INDEPENDENT SCHOOL DISTRICT, THAT TAYLOR HIGH SCHOOL IS ACCESSIBLE TO STUDENTS AND EMPLOYEES BY 6:30AM.

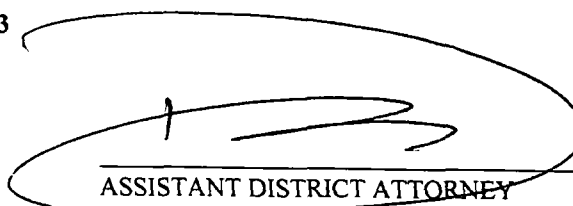
YOUR AFFIANT ESTABLISHED, BY OBTAINING A COPY OF HER CERTIFICATION, THAT SUSPECT CALVILLO IS CERTIFIED BY THE TEXAS EDUCATION AGENCY LOCATED AT 1701 N CONGRESS AVE AUSTIN, TEXAS 78701 AS AN EDUCATIONAL AIDE I UNDER THE NAME CALVILLO, AMALIA WITH A VALID EDUCATION CERTIFICATION AND WAS EMPLOYED BY THE ALIEF INDEPENDENT SCHOOL DISTRICT AS A NURSE'S AIDE AT TAYLOR HIGH SCHOOL LOCATED AT 7555 HOWELL SUGARLAND RD HOUSTON, HARRIS COUNTY, TEXAS 77083 AT THE TIME OF THE ALLEGED OFFENSES HAVING OCCURRED.

AFFIANT THEN RESEARCHED THE SUSPECT AND OBSERVED THE SUSPECT HAS A TEXAS IDENTIFICATION CARD NUMBERED 35345345 AND A SOCIAL SECURITY NUMBER OF 450-31-2678. PAST EMPLOYMENT RECORDS INDICATE A RESIDENCE ADDRESS OF 13222 BARRANCA HOUSTON, TEXAS 77083. YOUR AFFIANT FURTHER OBSERVED THAT THE LISTED SUSPECT IS A HISPANIC FEMALE 5'02 TALL WEIGHING APPROXIMATELY 140 POUNDS WITH BROWN HAIR AND HAZEL COLORED EYES. SUSPECT WAS FOUND TO HAVE A DATE OF BIRTH OF NOVEMBER 05, 1974.

AGAINST THE PEACE AND DIGNITY OF THE STATE.

Sworn to and subscribed before me on **March 11, 2013**


AFFIANT


ASSISTANT DISTRICT ATTORNEY
OF HARRIS COUNTY, TEXAS
24063679
BAR NO

COPY OF COMPLAINT/WARRANT DELIVERED TO

Officer's name: MICHAEL WALSON

Police agency: ALICE ISD POLICE

~~Phone no.~~ 3-14-13 date/time: 10:50